

NAME : S. Kanishka

REG NO : 25082100503912013

SUBJECT : Case Study

CASE NAME : Shreya Singhal v. Union of India (2015)

CLASS : 2nd B.Com (Honours)

Face Prep , Kamaraj College

Introduction

Shreya Singhal v. Union of India, decided by the Supreme Court of India on 24 March 2015, is one of the most important constitutional cases concerning freedom of speech on the internet. It examined whether the government could criminally punish people for online messages that were merely offensive, annoying, inconvenient, or unpopular.

The judgment recognised that social media and internet platforms are important spaces for public debate. It confirmed that citizens enjoy the same constitutional protection for online expression as they do for speech made through newspapers, books, meetings, or other traditional forms of communication.

Facts of the Case

The case arose after incidents involving arrests for online posts under Section 66A of the Information Technology Act, 2000. In one widely reported incident in 2012, two young women from Maharashtra were arrested after one posted a Facebook comment criticising the shutdown in Mumbai following the death of a political leader. The second woman was arrested merely for “liking” that post.

Section 66A made it an offence to send, through a computer resource or communication device, information that was “grossly offensive,” “menacing,” or known to be false but sent for purposes such as causing “annoyance,” “inconvenience,” “insult,” “injury,” or “ill will.” The provision carried the possibility of imprisonment.

Many people argued that the language of the section was unclear and gave police authorities excessive discretion. Public criticism grew because people could be arrested for ordinary political criticism, satire, criticism of public figures, or personal opinions shared online.

Shreya Singhal and other petitioners approached the Supreme Court, challenging the constitutional validity of Section 66A and certain related provisions of the Information Technology Act.

Legal Issue

The main legal issue before the Supreme Court was whether Section 66A violated the fundamental right to freedom of speech and expression guaranteed by Article 19(1)(a) of the Constitution of India.

The Court also considered whether the restrictions imposed by the provision could be justified under Article 19(2). Article 19(2) permits reasonable restrictions on speech only for specified reasons, including sovereignty and integrity of India, security of the State, public order, decency, morality, defamation, contempt of court, and incitement to an offence.

In addition, the Court examined:

- Section 69A, which allows the government to block public access to online information in certain situations; and
- Section 79, which protects internet intermediaries, such as social-media platforms and online service providers, from liability for content created by users.

Judgement

The Supreme Court unanimously struck down Section 66A of the Information Technology Act in its entirety. It held that the section was unconstitutional because it violated Article 19(1)(a) and was not protected by the reasonable-restriction grounds under Article 19(2).

The Court observed that expressions such as “annoyance,” “inconvenience,” and “grossly offensive” were vague and subjective. Different people may be annoyed or offended by different things. Since the law did not provide clear standards, it allowed authorities to apply the provision arbitrarily.

The Court further held that Section 66A could create a “chilling effect” on free speech. People might avoid expressing lawful opinions online because they feared arrest, prosecution, or harassment. Such fear is harmful to democracy because criticism, debate, and disagreement are essential in a democratic society.

However, the Court upheld Section 69A. It found that this provision contained adequate safeguards, such as the requirement of written reasons, a defined procedure, and review by a committee. Therefore, content blocking could be allowed when it was carried out according to law and for reasons recognised under Article 19(2).

The Court also interpreted Section 79 narrowly. It held that intermediaries are generally required to remove or disable access to user-generated content only after receiving a court order or a valid government notification. This protected intermediaries from being forced to remove content simply because a private individual complained about it.

Legal Principle

The main legal principle established in this case is that a restriction on speech must be clear, specific, and directly connected to one of the grounds mentioned in Article 19(2). A law cannot criminalise speech merely because it is unpopular, irritating, insulting, inconvenient, or offensive to some people.

The Court made an important distinction between discussion, advocacy, and incitement:

- **Discussion** is fully protected because it encourages exchange of ideas.
- **Advocacy** is also protected, even if the opinion is controversial or strongly critical.
- **Incitement** may be restricted when speech has a direct tendency to cause public disorder, violence, or another legally recognised harm.

The judgment therefore established that the government cannot suppress online speech unless there is a close and clear connection between the expression and a legitimate constitutional ground for restriction.

Business Relevance

The judgment has major relevance for technology companies, social-media platforms, e-commerce businesses, digital news organisations, online educators, bloggers, and all businesses that communicate with customers through the internet.

For businesses, the case offers greater protection for digital communication. A company can express opinions, advertise, criticise unfair practices, engage with customers, and participate in public discussions without the constant fear that a vague criminal law will be used against it merely because someone finds the communication offensive.

For online platforms and intermediaries, the decision is especially important. Platforms such as social-media companies, marketplaces, website hosts, and messaging services are not expected to remove every piece of content merely upon receiving a private complaint. The requirement of a court order or lawful government notification gives these businesses a clearer legal standard for handling requests to remove content.

At the same time, businesses must remain careful. The decision does not protect unlawful online activity such as defamation, fraud, threats, obscenity, copyright infringement, hate speech that amounts to incitement, or content that threatens public order or national security. Digital businesses should therefore maintain proper content-moderation policies, complaint procedures, legal-review processes, and records of government or court notices.

Conclusion

Shreya Singhal v. Union of India is a landmark decision that strengthened freedom of speech and expression in India's digital environment. By striking down Section 66A, the Supreme Court protected citizens from vague and arbitrary criminal prosecution for online communication.

The case confirms that the internet is a vital platform for democratic participation, public debate, criticism, and exchange of ideas. It also provides important guidance to businesses and online platforms by balancing free speech with legitimate concerns relating to public order, security, and unlawful content. The judgment continues to be a foundational authority on digital rights, intermediary liability, and constitutional freedom of expression in India.